

		plaintiffs' counsel for plaintiffs' litigation costs, as requested; • \$42,500.00 (\$15,000.00 to Shahla Bamossy, \$5,000.00 each to Alex Bhagatram, Soraya Lodin, Ha Nguyen, Alicia Taylor and Michael Webster, and \$2,500.00 to Farinasp Zamani) to Plaintiffs as enhancement awards, reduced from the \$75,000.00 requested; • \$26,995.00 to Phoenix Settlement Administrators, the settlement administrator, as requested; • \$3,796,444.93 to the LWDA for its share of PAGA penalties; and • \$1,265,481.64 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for November 22, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiffs are ordered to give notice of the ruling to the LWDA and Defendants.
6	30-2022-01289186 McDonald vs. The Management Association, Inc.	The hearing on plaintiff's motion for approval is CONTINUED to November 16, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief shall be filed at least 16 days before the hearing and shall address as necessary each of the below points. The parties must provide redlined versions of all revised documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$684,000 PAGA settlement. The court has the following questions and comments: 1. Were all moving papers submitted to the LWDA? Plaintiff must file with the court an actual proof of service identifying the specific documents served

		on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide plaintiff's total anticipated consideration to be received (including for any individual claims). 3. The escalator provision (§ 8.1) provides two options, one of which defendant must have elected no later than 30 days prior to the initial settlement approval hearing. § 8.1. Prior to settlement approval, the parties must determine (1) whether the escalator provision has been triggered, (2) the final gross settlement amount, and (3) the final PAGA Period. 4. The "Released Parties" provision (§ 1.26) is overbroad. It includes unrelated, ambiguous and/or unidentified third parties including "affiliated entities, related entities" and "affiliates" which should be removed. 5. The "Release by Aggrieved Employees" (§ 5.2) is overbroad. Delete the following: "all civil penalties, costs, expenses, attorneys' fees, claims, or interest for any Labor Code or Wage Order violation alleged or reasonably could have been alleged, based on the PAGA Period facts stated in the Complaint and/or the PAGA Notice, including but not limited to claims for violations of the California Labor Code sections 96, 98.6, 200, 201, 202, 203, 204, 210, 226, 226.3, 226.7, 232.5, 246, et seq., 432, 510, 512, 558, 1102.5, 1174, 1174.5, 1194, 1197, 1197.1, 1198.5, 2699, 2802, 2810.3, 2810.5, among other, and Business and Professions Code section 17200, et seq., and the applicable California Industrial Welfare Commission Wage Orders, and any other claims, including claims for statutory and/or civil penalties." Insert the following: "all claims for PAGA penalties that were alleged, or reasonably could
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		have been alleged, based on the PAGA Period facts stated in the Complaint and/or the PAGA Notice.” 6. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 7. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. If Plaintiff’s counsel seeks fees in excess of 30%, Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 8. Plaintiff’s counsel asserts the lodestar is \$270,514 based on 360.6 hours incurred. ROA 80 ¶ 26. Were all those hours incurred in this action? If not, counsel should set forth the lodestar in this PAGA-only action, excluding hours incurred in the class action. 9. Plaintiff’s counsel seeks \$19,035.41 in costs. Plaintiff’s counsel should submit invoices supporting the expert and mediation fees. Additionally, it appears counsel seeks costs for plaintiff’s related class action. Counsel should explain why it is fair and reasonable that those costs should be deducted from the gross settlement amount in this PAGA-only action and would serve to reduce the amounts recovered by the LWDA and Aggrieved Employees. 10. Plaintiff seeks an enhancement award of \$7,500. The court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. If Plaintiff seeks an enhancement in excess of \$5,000, Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice letter:</u>
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		distributed under the settlement, including any uncashed checks. <i>Id.</i> Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
7	30-2024-01409560 Barroso vs. Applied Composites Holdings, LLC	The hearing on plaintiff's motion for approval is continued to November 16, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief shall be filed at least 16 days before the hearing and shall address as necessary each of the below points. The parties must provide redlined versions of all revised documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$400,000 PAGA settlement. The court has the following questions and comments: <u>As to the Settlement:</u> 1. The definition of "defendant" is incorrect. ¶ 2. The defendant is only "Applied Composites Holdings, LLC." No other definition will be approved. 2. The parties must confirm the final gross settlement amount, i.e., whether the escalator provision (¶ 15(c)) has been triggered. 3. The settlement incorrectly cites ¶ "13(c)" as the escalator provision. ¶ 14. 4. The release provision (¶ 19(a)) is overbroad and/or vague. It should be replaced in its entirety with the following: "Upon the Effective Date and subject to Defendant's full payment of the Gross Settlement Amount, Plaintiff, on behalf of herself, her heirs, executors, and assigns, the Aggrieved Employees, and the State of California, fully releases and discharges Defendant, and each of its subsidiaries, parent companies, successors, predecessors, and assigns, and each of their respective shareholders, officers, partners, directors, employees, agents,